

		Counsel should be prepared to discuss the status of the appraisal of the Texas Property.
		[Motion Type]
		TENTATIVE RULING Case: Calendar No.: Date:
01506001	Mahler – Trust	TENTATIVE RULING Case: Mahler – Trust 01506001 Calendar No.: 8 Date: 07/01/2026 MOTION TO DISMISS (ROA 17) Objector and Trustee Roberta Jo Mahler (“Trustee”) moves for an order dismissing the Petition filed by Petitioner David Mahler (“Petitioner”) and/or dismissing the cause of action to order delivery of the decedent’s will. Trustee’s request for judicial notice (ROA 15) of Exhibit 1 is granted. This case involves the Arnold Nelson Mahler and Roberta Jo Mahler Family Trust dated 11/11/86 and completely restated on 11/16/23 (the “Trust”). On 8/21/25, Petitioner filed a “Verified Petition to Compel Production of Trust Documents and Assets; Request for Delivery of Will; and for Accounting of All Estate Assets, Including Non-Trust and Personal Property” (ROA 2)(the “Petition”).

		Trustee moves to dismiss the Petition on the grounds that Petitioner lacks standing because the Trust remains revocable. Trustee further moves to dismiss the cause of action to order delivery of the will on the grounds that it is moot since a copy of the will has been filed with the court (OCSC Case No. 30-2025-01459560). To establish Petitioner’s lack of standing, Trustee relies on extrinsic evidence. Specifically, Trustee relies on relevant portions of the Trust, the declaration of Trustee, and the declaration of the attorney who drafted the Trust. Based on the extrinsic evidence, the Trust provides that, upon the death of the first settlor, the Survivor’s Trust would be revocable and the Residual Trust, if funded by the surviving spouse, would be irrevocable. Trustee is the surviving spouse, and she states that she has not funded the Residual Trust. A motion to dismiss based on extrinsic evidence is referred to as a nonstatutory speaking motion. “[N]onstatutory speaking motions have now been superseded by the procedure governing motions for summary judgment contained in section 437c of the Code of Civil Procedure. . . . [¶] Under this section a motion supported by affidavit of a person having knowledge of the facts may be made after answer whenever it is claimed that the action has no merit, and the complaint may be dismissed unless the other party shows facts sufficient to present a triable issue. The remedy afforded by this section is broad enough to cover all situations in which speaking motions have been employed, and there is therefore no longer any need for the nonstatutory procedure. In the interests of orderly and efficient administration of justice the litigant should be required to employ the statutory remedy, and a speaking motion to dismiss should be treated as a motion for summary judgment in order to preserve the safeguards provided by the statute.” (<i>Pianka v. State of California</i> (1956) 46 Cal.2d 208, 211-212, fn. omitted; see <i>Veseley v. Sager</i> (1971) 5 Cal.3d 153, 167 [same]; <i>Lavine v. Jessup</i> (1958) 48 Cal.2d 611, 614 fn.2 [same] and <i>Saltarelli & Steponovich v. Douglas</i> (1995) 40 Cal.App.4th 1, 5 [“The procedure of moving to dismiss an action based on extrinsic evidence is disapproved in California and the motion is permitted only where it complies with the requirements for a motion for summary judgment”].) Trustee’s motion to dismiss does not comply with procedural requirements of a motion for summary judgment. Thus, it cannot be deemed a motion for summary judgment.
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